purported protest was not named in a power of attorney, that it was found upon investigation that the agent or attorney was not authorized to file the protest, and that the collector has been prevented from complying with section 515 of the tariff act by the lack of authority of the agent or attorney to file the protest, inasmuch as section 514 specifies the only persons by or on whose behalf protests may be filed with the collector and section 515 does not authorize the collector to grant any purported protest or (if he does not agree with the claim) to deny it and refer it to the court for litigation on the merits, until the statutory prerequisite that it has been filed by an authorized person has been established.

(Secs. 514, 515, 624, 46 Stat. 734, 759; 19 U. S. C. 1514, 1515, 1624)

[SEAL] W. R. JOHNSON,
Commissioner of Customs.

Approved: April 30, 1947.

E. H. FOLEY, Jr.,
Acting Secretary of the Treasury.

[F. R. Doc. 47-4322; Filed, May 6, 1947; 9:13 a. m.]

TITLE 24—HOUSING CREDIT

Chapter VIII—Office of Housing Expediter

[Suspension Order S-14]

PART 807—SUSPENSION ORDERS

FRANK A. WEDDELL & WESTELEY BAKER

Frank A. Weddell, 1515 Beach Street, San Luis Obispo, California, as co-owner and builder, and Westeley Baker, 839 Marsh Street, San Luis Obispo, California, as co-owner, began construction on or about December 4, 1946 of a commercial building located at the northeast corner of North Broad and Lincoln Streets, San Luis Obispo, California, at an estimated cost of $12,000, without first having secured authorization therefor from the Civilian Production Administration or the Office of the Housing Expediter. The beginning and carrying on of construction as aforesaid constituted a grossly negligent violation of the Veterans' Housing Program Order 1. This violation has diverted critical materials to uses not authorized by the Office of the Housing Expediter. In view of the foregoing, it is hereby ordered that:

§ 807.14 *Suspension Order No. S-14.* (a) Neither Frank A. Weddell nor Westeley Baker, their successors or assigns, nor any other person shall do any further construction on the premises located at the northeast corner of North Broad and Lincoln Streets, San Luis Obispo, California, including completing, putting up or altering of any structure located thereon, unless specifically authorized in writing by the Office of the Housing Expediter.

(b) Frank A. Weddell and Westeley Baker shall refer to this order in any application or appeal which they may file with the Office of the Housing Expediter for authorization to carry on construction.

(c) Nothing contained in this order shall be deemed to relieve Frank A. Weddell or Westeley Baker, their successors or assigns, from any restriction, prohibition or provision contained in any other order or regulation of the Office of the Housing Expediter, except insofar as the same may be inconsistent with the provisions hereof.

Issued this 6th day of May 1947.

OFFICE OF THE HOUSING EXPEDITER,
By JAMES V. SARCONE,
Authorizing Officer.

[F. R. Doc. 47-4375; Filed, May 6, 1947; 10:06 a. m.]

PART 851—ORGANIZATION DESCRIPTION INCLUDING DELEGATIONS OF FINAL AUTHORITY

DESIGNATION OF ACTING HOUSING EXPEDITER

§ 851.22 *Designation of Acting Housing Expediter.* Adolph H. Zwerner is hereby designated to act as Housing Expediter during my absence on May 5, 6, 7 and 8, 1947, with the title "Acting Housing Expediter" with all the powers, duties, and rights conferred upon me by the Veterans' Emergency Housing Act of 1946, or any other act of Congress or Executive order, and all such powers, duties, and rights are hereby delegated to such officer for such dates. (60 Stat. 207, 50 U. S. C. App. Sup. 1821)

Issued this 2d day of May 1947.

FRANK R. CREEDON,
Housing Expediter.

[F. R. Doc. 47-4318; Filed, May 6, 1947; 9:02 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 366]

WYOMING

REVOKING IN PART EXECUTIVE ORDER CREATING PUBLIC WATER RESERVE NO. 149

By virtue of the authority contained in section 1 of the act of June 25, 1910 (36 Stat. 847, 43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943; *It is ordered as follows:*

The Executive order of February 14, 1933, creating Public Water Reserve No. 149, is hereby revoked as to the following described land:

SIXTH PRINCIPAL MERIDIAN

T. 45 N., R. 100 W., sec. 33, W½NW¼.

The area described contains 80 acres.

WARNER W. GARDNER,
Assistant Secretary of the Interior.

APRIL 30, 1947.

[F. R. Doc. 47-4284; Filed, May 6, 1947; 9:05 a. m.]

TITLE 46—SHIPPING

Chapter II—United States Maritime Commission

[Rev. G. O. 50, WSA Function Series]

PART 304—LABOR

DELEGATIONS OF AUTHORITY TO FEDERAL SECURITY AGENCY

General Order 50 (§§ 304.91 to 304.95, inclusive; 10 F. R. 10034, 46 CFR 1945 Supp.) is hereby revised to read:

§ 304.91 *Delegation of authority to conduct hearings and make determinations and certifications under section 209 (o) of the Social Security Act, as amended.* (a) The Appeals Council of the Social Security Administration of the Federal Security Agency, its members and referees, and the Territorial Directors of the Social Security Administration of the Federal Security Agency for the Territories of Alaska and Hawaii, all ex officio, are hereby designated and appointed as agents of the Maritime Commission to hear, determine, and make certification with respect to those matters determinable by the Maritime Commission pursuant to section 209 (o) of the Social Security Act, as amended, which may from time to time be involved in or presented at hearings conducted pursuant to section 205 (b) of said act.

The Federal Security Agency, or such persons, agencies and tribunals as the Federal Security Administrator may designate, are hereby designated to hear, determine and make certification with respect to matters determinable by the Maritime Commission, pursuant to section 209 (o) of the Social Security Act, as amended, which may from time to time be involved in or presented at hearings pursuant to sections 1303 and 1304 of the Social Security Act, as amended.

§ 304.92 *Compliance with Maritime Commission's regulations and orders.* The agents designated in § 304.91 (a), in performing the functions and duties thereby assigned to them, shall comply with such regulations and orders as may be issued by the Maritime Commission from time to time in connection with such functions and duties.

§ 304.93 *Notice of hearings to General Agents, Agents, or the Maritime Commission.* In the conduct of hearings pursuant to §§ 304.91 to 304.95, inclusive, notice thereof shall be given to the General Agent, or Agent who shall have made any tax return or certification having relation to the claim under consideration, as provided by section 209 (o) of the Social Security Act, as amended, and if there be no such General Agent or Agent, such notice shall be given to the Maritime Commission.

§ 304.94 *Procedure for hearings, rehearings, and review.* Procedure for the conduct of hearings pursuant to § 304.91 (a), and §§ 304.92 to 304.95, inclusive, and for the consolidation of such hearings with hearings on other issues involved in particular claims, for the making of decisions thereon, and for rehearing and for review of such decisions, shall, except as limited pursuant to § 304.92, be as prescribed by the Appeals Council of